

International Centre for Integrated Mountain Development (ICIMOD) Act, 1983

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International Integrated Mountain Development Centre Act, 2040

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Amending Act:

1. Republic Strengthening and Some Nepal Laws Amendment Act, 2066 2066.9.7

Act No. 9 of the year 2040

An Act made to provide legal provisions relating to the International Integrated Mountain Development Centre

Preamble: Whereas, in accordance with the agreement concluded between the Government of Nepal and the United Nations Educational, Scientific and Cultural Organization, an international centre has been established in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. to carry out study, research and other necessary work for the integrated development of the mountainous region of the Hindu Kush-Himalayan area, it is desirable to make legal provisions to enable such centre to work in a fully autonomous manner to operate at the international level, and

Whereas, it is desirable to make legal provisions also in relation to the privileges and immunities to be provided to such international centre, its employees, representatives and experts in accordance with the agreement granting the facilities and immunities provided by international law,

This Act is enacted by His Majesty King Birendra Bir Bikram Shah Dev with the advice and consent of the National Panchayat. 1. Short Title and Commencement: (1) This Act may be cited as the "International Integrated Mountain Development Centre Act, 2040".

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Centre" means the International Centre for Integrated Mountain Development established in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. pursuant to the agreement concluded between the Government of Nepal and the United Nations Educational, Scientific and Cultural Organization (UNESCO).

(b) "Agreement" means the agreement concluded between the Government of Nepal and UNESCO on September 30, 1981 in Paris.

(c) "Committee" means the Governing Board constituted for the operation of the Centre.

(d) "Director" means the Director of the Centre.

(e) "Employee" includes the Director, Deputy Directors, staff, experts, advisors and consultants of the Centre.

3. Centre to be an Autonomous Body: (1) The Centre shall be a fully autonomous, organised institution with international personality and perpetual succession.

The Centre shall not receive instructions from any government or institution other than the Committee. (2) The Centre shall have its own seal and may enter into contracts, and may sue and be sued in its own name. (3) The Centre may acquire, hold, use, or mortgage, lease, sell, dispose of, or donate movable and immovable property, rights, permits, facilities or assistance by way of donation, endowment, grant, exchange, purchase, sale, mortgage, lease or in any manner from the Government of Nepal or any foreign government or governmental agency, or from domestic, foreign or international organisations, companies, corporations or persons. (4) The Centre shall be operated on a non-profit basis and shall remain free from politics in matters of management, employee recruitment, and operational activities.

4. Functions, Duties and Powers of the Centre: Notwithstanding anything contained in the prevailing law, the functions, duties, powers and obligations of the Centre shall be in accordance with the Agreement and the Statute attached thereto.

5. Provision of Office Location: (1) The office of the Centre shall be in Kathmandu or, as decided by the Centre, in any other place in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (2) For the establishment of the office of the Centre, the Government of Nepal shall provide a suitable building at the expense of the Centre. (3) If the Centre decides to construct its own building, the Government of Nepal shall provide one and a half hectares of land free of cost in a suitable location for the construction of such building. (4) The Government of Nepal shall also arrange for basic facilities such as electricity, water, telephone, telegram, road, drainage etc. required in the building or land provided pursuant to sub-section (2) or (3). (5) The office building and land of the Centre shall be used only for the purpose of achieving the objectives of the Centre. (6) The entire responsibility for the maintenance and preservation of the office building of the Centre and the care and upkeep of the facilities and equipment installed therein shall lie with the Centre.

6. Inviolability of the Centre's Office Building, Premises and Property: (1) The office building, premises and property of the Centre shall be inviolable. (2) It shall be the duty of the Government of Nepal to prevent encroachment or damage to the office building, premises and property of the Centre and to prevent disturbance to its peace or order.

7.

Protection of the Centre's Property: The Government of Nepal shall provide protection to the property of the Centre in such a way that, wherever such property may be located in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. and with whosoever it may be, no person may search, seize, acquire, or interfere with or cause damage to such property in any manner.

8. Inviolability of Archives and Documents: (1) The archives of the Centre and all kinds of documents shall be inviolable wherever they may be located in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. (2) The official correspondence, documents and publications of the Centre shall not be censored in any manner, and the envelopes or other sealed covers, boxes, packages, etc. of such documents and any other postal articles shall not be opened or detained. Provided that if any article other than the documents of the Centre is placed in such sealed covers or packages, the prevailing Nepal law shall apply.

9. Exemption from Taxes: No direct or indirect tax, fee or levy of any kind imposed by the government, local removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. level, including income tax, house and land tax, land revenue, vehicle tax, interest tax, development tax, registration fee, shall be levied on the capital, income and property of the Centre. Provided that fees payable for any services such as electricity, water, drainage, telephone, telegram, transportation, postal services etc. to the Centre shall not be exempted.

10. Facilities Regarding Import and Export: Customs duties, sales tax or any fees, and restrictions or controls on import and export shall not be imposed on goods imported or exported by the

Centre for its own use. Provided that the Centre shall provide details of goods imported or exported to the customs office. 11. Tax Refund: The Centre shall not make any claim for refund of excise duty indirectly included in the price of goods purchased by it, or customs duties and sales tax levied on imports. 12.

Facilities Regarding Foreign Exchange: (1) Notwithstanding anything contained in the prevailing law, the Centre may maintain and operate foreign currency funds and accounts in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or in any other foreign country, and may transfer or exchange such funds within or outside Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. or from one country to another, and may convert one type of foreign currency into another. (2) The procedures to be followed by the Centre while enjoying the facilities provided pursuant to sub-section (1) shall be as determined by mutual consultation between the Government of Nepal and the Centre. 13. Immunity to Foreign Representatives or Experts: (1) The following representatives or persons coming to attend conferences or meetings of the Centre or assigned for the work of the Centre shall, while entering, staying in, or departing from Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066., be provided with facilities and immunities in accordance with the Convention on the Privileges and Immunities of the Specialised Agencies of the United Nations adopted on November 21, 1947, to which Nepal has been a party since September 28, 1965:- (a) Representatives or employees or experts of UNESCO, and (b) Members of the Committee or representatives of foreign governments or foreign institutions invited by the Centre. (2) The representatives or persons referred to in sub-section (1) shall be provided with free visas to enter Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. 14.

Facilities and Immunities to Office Bearers and Employees of the Centre: (1) While staying in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in connection with the affairs of the Centre, members of the Committee, the Director and Deputy Directors of the Centre shall, by being included in the relevant diplomatic category, be provided with facilities and immunities equivalent to those given to diplomatic persons under the prevailing law by the Government of Nepal. (2) Employees shall, while staying in Nepal removed by the Republic Strengthening and Some Nepal Laws Amendment Act, 2066. in the course of performing their duties related to the Centre, be provided with facilities and immunities in accordance with the Convention on the Privileges and Immunities of the Specialised Agencies of the United Nations adopted on November 21, 1947, to which Nepal has been a party since September 28, 1965. (3) The facilities and immunities pursuant to this section shall be provided by the Government of Nepal upon the request of the Centre. (4) The Centre shall provide the Ministry of Foreign Affairs of the Government of Nepal with details including the name, post, nationality and nature of work of any person entitled to facilities and immunities under this section, and any changes therein. (5) In order to obtain the facilities and immunities under this section, the concerned person shall show his/her identity card issued by the Centre as required. (6) Nothing in this section shall be deemed to prevent the Government of Nepal from providing such other facilities and immunities as it may deem necessary in addition to the facilities and immunities provided under this section. (7) Notwithstanding anything else contained in this section, facilities under this section shall not be provided to Nepali citizens. 15. Sale of Goods of the Centre: (1) If the Centre sells or transfers without consideration any goods for which customs duties, sales tax, fees or excise duty have been exempted or refunded under section 10 or 11, the customs duties, taxes, fees or excise duty that would be applicable at the prevailing rate on the then current value of such goods shall be paid to the Government of Nepal. (2) If, among the goods imported by the Centre under section 10, prohibited or controlled goods are to be sold as no longer required by the Centre, such goods may be sold or transferred only to the Government of Nepal or to a person authorised by the Government of Nepal. 16.

Liability for Damages: (1) No claim for damages shall lie against the Centre or its employees in relation to any act done by the Centre or the employee in the course of its/his/her work or duties. Provided that if any person suffers damage or loss due to an act of negligence or intentional act of an employee, the concerned person may make a claim to the Centre through the Government of Nepal. (2) The Centre shall make necessary arrangements to provide reasonable compensation for a specific type of damage or loss caused to any person by any act done by the Centre in the course of its work or duties. (3) The compensation to be given under sub-section (2) shall be arranged by the Centre, in consultation with the Government of Nepal, to be provided through an insurance company or by other means. 17. Not to Grant Asylum: Notwithstanding anything contained in this Act, the Centre shall not grant asylum within its office building and premises to any person liable to be arrested under the law of Nepal, or to any person to be extradited to another country, or to any person seeking to evade legal or judicial proceedings. 18. Prevention of Abuse of Facilities and Immunities: (1) The facilities and immunities provided by this Act shall be deemed to be granted solely in the interest of the Centre. It shall be the duty of the Director to prevent the abuse of such facilities and immunities. (2) If the Government of Nepal considers that any facility or immunity under this Act has been abused, the Government of Nepal shall give written notice thereof to the Centre. (3) Upon receipt of the notice under sub-section (2), the Director shall consult with the concerned official of the Government of Nepal and provide written information to the Government of Nepal about the action taken in that regard. 19. Dissolution: Upon dissolution of the Centre, the management of all its assets and liabilities shall be as mentioned in the agreement concluded between the Government of Nepal and the Centre in that regard. 20. Liaison with the Government of Nepal: The Centre shall liaise with the Government of Nepal through the Ministry of Education and Culture.